Nuts
By Tom Topor

MACMILLAN: **(Pg 11)** *(Rises, crosses to Judge's bench)* The defendant has been indicted in the county of New York for manslaughter in the first degree. People asked that the defendant be given a psychiatric evaluation to determine whether she had the capacity to stand trial. This is in accordance with Article seven-three-oh of the Criminal Procedure Law. The results of that evaluation were submitted to the court, and the two examining psychiatrists found that the defendant did ***not*** have the capacity to stand trial. The defendant filed a motion for a hearing to challenge and this procedure is that hearing. **(Pg 64)** Mrs. Draper, do you understand the charge against you?

CLAUDIA: Yes, I do.

INTRODUCTION

Claudia Draper is a white, upper middle-class white woman living in New York. She seems completely put together. Until she's not. Claudia, in an effort to live on her own terms after her marriage ends, seeks unorthodox methods. Some would call it prostitution, she would call it gifts. However, after one of her clients is found dead, Claudia is charged with manslaughter. Her parents ask that she be committed to Bellevue, a hospital for the criminally insane. But Claudia has other plans. She wants autonomy. She wants to take responsibility for her choices. And she doesn't want to be labeled Nuts by Tom Topor.

CLAUDIA: **(Pg 64)** First degree manslaughter is a Class B felony--intent to cause serious physical injury to another person, causing the death of such person. **(pg 66-67)** [And] if I lose today, they can lock me up in a hospital for the criminally insane, and they don't ever have to let me have a trial.

MACMILLAN: **(pg 68-70)** Mrs. Draper, do you believe that you're physically and mentally prepared to go on trial?

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CLAUDIA: Yes, I do.

MACMILLAN: Mrs. Draper, how long were you married?

CLAUDIA: Nearly 10 years. Six weeks short of 10 years . . . It had its moments. [And] I love him . . . Loved him. No, I still love him. *(beat)* He found another woman so he could leave me. Actually, he left long before he left. A couple of years later, [his] body follow[ed him] out the door.

MACMILLAN: And you moved to a place that you could afford – where is that, Mrs. Draper? *(Crosses down right)*

CLAUDIA: First Avenue and 55th. **(Pg 72)** [I was making] a hundred a week from Peter and $75 a week from a part-time job at NYU. **(pg 73)** [I lived on] gifts. [From] friends. [Men] friends. **(Pg 74-75)** *(to Judge)* Is it legal to take cash gifts? If I say to you, here's $100 just because I like you – is that legal?

JUDGE: Yes, that's legal.

CLAUDIA: A lot of the gifts were cash.

MACMILLAN: And these cash gifts from these men friends – these cash gifts of more than $50? – were enough to pay your expenses.

CLAUDIA: All of them. And tuition at NYU Law School.

LAWYER: And what did these men expect in return for these "gifts"?

CLAUDIA: Friendship.

MACMILLAN: You talked to them? You listened to them? You did them favors? What kind of favors did you do in return for these gifts?

CLAUDIA: **(Pg 76)** It works like this: you call me first, we make a date. I look you over and if I like you, we make a deal. Half the cash in front, half when you leave. *(Pause)* Darlin' I am worth the trouble, take my word for it. **(Pg 77-78)** [I lived on my own terms for] one hundred and fifty-two days. Five months.

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MACMILLAN: At any time during these five months, did you ask your husband [or] your parents for money? Did you believe they would have refused to lend or give you money?

CLAUDIA: They would have given it to me. [But] it hurts less to sell your ass to strangers. *(Pause)* I don't know which price is higher--either way, you pay and you pay. *(Looks at her mother)* -- If you ever want to listen, Mama, I can try to explain it. *(Back to the lawyer)* **(Pg 82-83)** She loves me. *(Pause)* When I was a little girl, I used to say to her, I love you to the moon and back again; and she used to say to me, I love you to the sun and down again and around the stars and back again. *(Looks at her mother)* Do you remember, Mama? *(Back to the lawyer)* And I used to think, wow, I love Mama, and Mama loves me and what can go wrong? *(Pause)* What went wrong, Mama? You see, I know she loves me and I know I love her, and--so what? So what? She's over there and I'm over here, and she hates me because of things I've done to her, and I hate her because of the things she's done to me. You stand up there asking, do you love your daughter and they say 'yes', and you think you've asked something real. You think that because you toss the word love around like a frisbee we're all going to get warm and runny. No. Something happens with some people: they love you so much they stop noticing you're there because they're so busy loving you. They love you so much, their love is a gun, and they keep firing it straight into your head. They love you so much you go right into a hospital. Yes, I know she loves me. *(Looks at her mother)* Mama, I know you love me. And I know the one thing you learn when you grow up is that love is not enough. It's too much and it's not enough.

MACMILLAN: *(Crosses left)* Let me see if I understand you correctly, Mrs. Draper. You believe that everyone in this courtroom either wants to hurt you or will hurt you?

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CLAUDIA: **(Pg 83)** All of you can, some of you will. **(Pg 82)** I don't trust people who can hurt me; not anymore. **(Pg 79)** Your job is to put me in a hospital. I don't know; I guess I'm dumb. I take that personally. **(Pg 78)** [You tell me I'm] a nice girl and [I] don't belong here. **(Pg 79)** Whores aren't nice white girls from nice white families. Whores are girls who hang out on Eighth Avenue and stick needles in their arms. *(Pause)* But what if you're wrong? **(Pg 84-85)** While you're playing with your rules, the meter is running out on my goddamn life. Can't you get that I understand you want to help, and I don't want your help? I know the price of your help. I know I'm supposed to be a good little girl for my mother and father, and an obedient and faithful wife to my husband, *(Crosses down)* and stick out my tongue for the doctor and lower my head for the judge. I know all that, I know what you expect me to do. Look, I am not just a picture in your heads. I am not just a daughter, or a wife, or a hooker, or a patient, or a defendant. Can't you get that? You don't understand the things I do, but I do have my reasons. They're not your reasons, so they're not real to you, but they're real to me. And that's enough. *(Crosses up and looks at her mother)* I know women who peddle their daughters to hang on to their husbands, so don't judge [me]. I knew what I was doing every goddamn minute. And I am responsible for it. I lift my skirt, I am responsible; I go down on my knees, I am responsible. If I play the part you want me to play, if I play sick, I won't be responsible. Poor, dumb sick Claudia, she's not responsible, the poor sick things, she needs our help. I won't play that part. I won't give you that out. I won't be another picture in your heads, Claudia the nut; I won't be nuts for you? Do you get what I'm telling you? *(She is near hysteria. She wipes her mouth on her sleeve and takes a step back)* [The judge] can sign a piece of paper saying I'm nuts, but it's only a piece of paper and I'm not something on a piece of paper. And no matter how many times you sign it;

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no matter how many times you say it, you can't make me nuts. Get it straight, I won't be nuts for you.

RECORDER: **(Pg 88)** On June 15th, 1979, Claudia Faith Draper was tried in the State Supreme Court, New York County, on a charge of manslaughter in the first degree. She was acquitted.

SOURCE INFORMATION

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AWARD HISTORY

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